

Terms & Conditions for SBI Personal Loan Scheme

A. Term Loan / Overdraft Facility

1. A Term Loan/Overdraft Facility account shall be opened with the Bank after approval of loan by the Bank. Customer shall maintain this account throughout the period of loan/facility.
2. A servicing account shall be opened where it may be debited by the Bank for any interest, charge, or fee payable by the Customer where necessary.
3. The Bank reserves the right to cancel the Term Loan/Overdraft Facility or increase/reduce the overdraft limit of the Overdraft Facility without furnishing any reason and not provide any given notice. Any outstandings shall be paid to the Bank with immediate effect.
4. Partial repayment of the loan facility during the Loan Tenure period is not allowed.
5. The Customer shall notify the Bank in writing by giving not less than 30 business days for full repayment of the Term Loan or termination of the Overdraft Facility. Interest payable and any amount owing to the Bank shall continue and remain unchanged till the last day on any adjustment or termination of loan.
6. The Term Loan/Overdraft Facility is to be used by the Customer to finance personal expenses and not to be utilised for any other purpose that is defined "Excluded credit facilities" in the Notice 635 from the Monetary Authority of Singapore (MAS) dated 27 May 2015, or such notice/ directive as may be issued by MAS from time to time.
7. The Overdraft Facility shall not be used to pay any amount owing or due payable to the Bank.
8. The Customer shall receive the statement on a monthly basis or any time interval as determined by the Bank and examine to ensure the accuracy of the transactions. Any discrepancy or error shall be reported to the Bank within 30 days from the date of statement in order for the Customer to pursue any possible remedy.
9. The Customer shall repay the loan facility in monthly instalments, which will cover the principal and interest. Monthly instalments will be due on the first day of each month after the disbursement of the loan facility, until the loan facility has been paid in full and interest due on it.
10. This loan facility is granted to Customer upon the Customer's declaration that the Customer is a Singapore citizen or a permanent resident and it shall be incumbent upon the Customer to immediately inform the Bank of any change in citizenship or residency status of the Customer for loan review purpose.
11. If the Overdraft Loan Facility is not utilised for more than three (3) months after the date of acceptance of the facility letter granting the Overdraft Loan Facility, the Bank shall, in its discretion, be entitled to cancel the Overdraft Loan Facility.

B. Set-off

1. The Bank is entitled at any time and without notice to the Customer to combine or consolidate any of the Customer's accounts and liabilities with the Bank in Singapore or elsewhere towards satisfaction of any of the Customer's liabilities to the Bank in Singapore or elsewhere whether such liabilities be actual or contingent, primary or collateral and several or joint, including any liabilities under the accounts of the Personal Loan Scheme.

C. Events of Default

- The Bank reserves the right to declare an event of default and demand immediate repayment of any outstanding amount and interest owing in respect to the loan facility, inclusive of other charges and fees payable in relation to the loan upon events of default happening as mentioned below:
1. The Customer has made any material statement which was incorrect or misleading, or suppressed any material fact in the application form for the Term Loan/Overdraft Facility;

2. The Customer is repeatedly not able to pay any sum payable owing to the Bank as scheduled;
3. Any other debts are not paid when due;
4. An event that has occurred which provides the Bank with reasonable grounds to believe that it will no longer be in the interest of the Bank to continue the loan facility to the Customer;
5. The Customer dies, suffers from any physical disability or becomes mentally impaired;
6. The Customer is declared a bankrupt or becomes insolvent where a bankruptcy order is against him/her;
7. The Customer is in breach of any terms or conditions (material or otherwise) of the facility letter granting the loan facility.

D. Charges and Fees

1. The Bank shall be entitled to charge fees for handling, servicing, administering, adjusting, maintaining and operating any loan facility as the Bank may decide or impose.
2. A Processing Fee may be charged by the Bank if and where necessary for successful application.
3. A flat fee of \$50.00 is chargeable by the Bank on any outstanding principal and/or interest overdue per month.
4. The Overdraft limit shall not be exceeded by Customer at any time. To determine if an Overdraft limit has been exceeded, the Bank may take into account all interest owed and accrued.
5. Full repayment of the Term Loan Facility within the Loan Tenure period is subject to a pre-payment fee of: (i) 3% of the outstanding facility amount or \$300 whichever is higher if repaid within 1st year from the disbursement of the loan facility or (ii) 2% of the outstanding facility amount or \$100 whichever is higher if repaid after the 1st year but within the Loan Tenure period.

E. Taxes

In the event that any GST or any other taxes, levies or charges are required by law to be paid on any sums payable, the Customer will have to pay the Bank the exact amount of any such GST or other taxes, levies or charges incurred.

F. Notices/ Change of Personal Particulars

Any notice or document required to be sent or served on the Customer shall be deemed validly sent or served to the Customer's last known address, email, facsimile or contact number. The Customer must notify the Bank promptly in writing of any change in personal particulars pertaining to the loan facility.

G. Bank Records and Statements

1. Any Bank's records or documents of a Customer in relation to the loan facility may be destroyed due to any reason as perceived by the Bank or used as evidence in any proceeding.
2. The Bank shall not be liable for any loss or damage suffered by the Customer in the event that any communication of information in the form of last known address, email, facsimile or contact number between the Bank and the Customer is received by a third party.
3. The Customer acknowledges and accepts the Bank's scanned records of any and all forms, documents, instructions or communications as being final and conclusive (except where there is manifest error) and the same shall be binding on the customer for all intents and purposes. The Customer accepts that all such records are relevant and admissible in evidence. The Customer shall not dispute the accuracy or the authenticity of the contents of such records merely on the basis that such records were produced by or are the output of a computer system, and the customer expressly waive any right to so object.

H. Assignment

1. The Customer shall not be entitled to assign any of its rights, interest and obligations relating to the loan facility at any point in time.
2. The Bank shall be entitled to transfer and assign any of its rights and interest relating to the loan facility at any time without any notice provided to Customer.

I. Tax Requirements for Compliance

For all jurisdictions where tax compliance is concerned, the Customer has to comply and understand the tax requirements and obligations relating to the opening and use of account(s) for the loan facility. The customer is fully responsible to any tax compliance that is required of him/her relating to the payment of all relevant taxes.

J. Severability

If any of these terms or any part of them stated is deemed invalid, unlawful or unenforceable in any jurisdiction, the validity, legality and enforceability of the remaining terms in such jurisdiction shall not be affected but these terms shall be read as if such invalid, unlawful or unenforceable terms.

K. Indemnity

The Customer shall indemnify the Bank and all the Bank's servants, employees, nominees, directors and agents for all losses, costs, damages, claims and expenses, including legal fees and costs (on a full indemnity), howsoever suffered or incurred by the Bank (other than (i) such losses, costs or damages arising from the gross misconduct and negligence of the Bank, its employees and agents or (ii) the Customer establishes that such losses, costs or damages did not arise (directly or indirectly) from the act or omission of the customer) including without limitation to any one or more of the following:

1. The Customer's usage of any services provided by the Bank in relation to any account, loan facility and/or these terms;
2. The Customer not fulfilling his/her obligations;
3. The Bank acting or carrying out any instruction given by the Customer or authorised person in accordance with these terms regardless of whether such instructions are unauthorised, inaccurate or incomplete;
4. The enforcement of the Bank's rights under these terms and other applicable terms in connection with any service or facilities given by or arrangement made with the Bank for the operation of the account or loan facility, or as a result of any non-compliance by the Customer, of these terms or of such applicable terms;
5. Any involvement by the Bank in any proceedings of whatever nature for the protection of or in connection with any account, facility and/or these terms;
6. A right or remedy in connection with these terms that is exercised or to be exercised by the Bank after the Customer is in default.

L. Exclusion of Liability

The Customer agrees that the Bank shall not be liable for any loss, damage or expense suffered or incurred by the Customer arising from any one or more of the following events:

1. Governmental restrictions, imposition of emergency procedures or suspension of trading by any relevant market, civil order, act or threatened act of terrorism, natural disaster, war, strike or other circumstances beyond the Bank's control;
2. Computer breakdown, computer or system virus interference, sabotage, mechanical failure or malfunction of computer software or equipment, interruption of services or other reasons of any kind whatsoever through no fault of the Bank or loss of, destruction to or error in the Bank's records, howsoever caused.
3. The exercise by the Bank of any of the Bank's rights under these terms;

4. Acting on instructions, requests or communications from the Customer which the Bank believes originates from the Customer.

M. Customer's Instructions

1. The Bank may act on any instructions for withdrawal, closure or any other matter whatsoever relating to the operation of the account or loan facility given or purportedly given by the Customer or the Customer's authorised signatory by mail or any other medium of communication, including without limitation to via facsimile transmission or telephone.
2. Where the Bank agrees to act on instructions given by the Customer or the Customer's authorised signatory via a medium of communication other than postal mail, the customer shall indemnify the Bank from and against any loss or damage whatsoever and howsoever arising which the Bank may incur as a result of acting on such instructions or the instructions of the Customer's authorised signatories in accordance with these terms.
3. The Bank may record all instructions received from the Customer or the Customer's authorised signatories and all other telephone conversations with the Customer and the Customer's authorised signatories during which the Customer's Instruction was given and the Customer agrees to be bound by such recording.

N. Outsourcing

The Bank shall have the right to outsource or sub-contract any part of the Bank's banking operations to such third party (including but not limited to any party outside Singapore) in relation to these terms and in accordance with applicable laws, rules, regulations, directives and notices of the relevant government or statutory authority, body or agency.

O. Waiver

No failure or delay by the Bank in exercising or enforcing any right or option under these terms shall operate as a waiver thereof or limit, prejudice or impair the Bank's right to take any action or to exercise any right as against the customer or render the Bank responsible for any loss or damage whatsoever and howsoever arising therefrom.

P. Amendment of Terms and Conditions

1. The Bank shall be entitled to add to or vary any of these terms at any time by providing at least thirty (30) days' notice of any variation which relates to fees and charges and the Customer's liabilities and obligations before such variation takes effect. The Bank shall not be obliged to give the Customer the said thirty (30) days' notice if variations are required in an emergency or where the Bank has acted in good faith and it is not practicable to give such advance notice.
2. All amendments shall take effect and bind the Customer from the effective date specified in the Bank's notice. Notice may be given to the Customer by exhibiting notice of the amendments or making available a set of the revised terms at the Bank's branches, Bank's website or through publication in any media. Upon such exhibition or publication, the Customer is deemed to have been notified of such amended terms.

Q. Other Conditions

1. The current SBI General Terms and Conditions Governing Deposit Accounts applies to all accounts held in connection with any loan facility.
2. The Customer has to make sure that is no statutory demand served and no legal proceedings commenced against him/her when applying such loan facility and during the period of the loan facility. The Customer has to inform the Bank immediately if otherwise.

3. The Customer agrees that his obligations to the Bank in connection with the loan facility shall be binding on his respective successors, assigns, executors, administrators or legal representative as the case may be.

R. Governing Law and Jurisdiction

1. These terms shall be governed by the laws of the Republic of Singapore. The Customer hereby submits to the non-exclusive jurisdiction of the Courts of Singapore.
2. The Bank shall not be responsible for the effect of any laws, regulations, governmental measures or restrictions of any relevant country which may apply to loan facility or to the Bank's assets and the customer accept all risks of or arising from any such laws, regulations, governmental measures and restrictions.